

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 7, Honorable Charles F. Adams Presiding

T. Duarte, Courtroom Clerk
191 North First Street, San Jose, CA95113
Telephone: 408.882.2170

To contest a tentative ruling, you must:

1. Call (408) 808-6856 before 4:00 P.M. and leave a voicemail message containing the information described below, and
2. Notify the other side before 4:00 P.M. that you will appear at the hearing to contest the tentative ruling.

In the voicemail message, please state your case name, case number, the name of the attorney and contact number. It would also be helpful if you could identify the specific portion or portions of the tentative ruling that will be contested.

PLEASE NOTE:

- If you do not notify the Court and/or opposing side as required by California Rule of Court, rule 3.1308(a)(1) and Probate Local Rule 2(A), the Court will not hear argument and the tentative ruling will be adopted *even if* all parties appear at the hearing.
- Sending an email to the department will not suffice to constitute notice to the Court of the need for a hearing regarding a tentative ruling.

Court reporters are not provided. Please consult our Court's website, www.sccscourt.org, for the rules, policies, and required forms for appointment by stipulation of privately-retained court reporters.

- **Parties can appear either in person or remotely.** All remote appearances must be made through UDC, unless otherwise arranged with the Court. Please go to <https://santaclara.courts.ca.gov/online-services/remote-hearings> to find the appropriate link. Also, please note that that you must register in advance to appear remotely.
- As a reminder, state and local Court Rules prohibit recording of court proceedings without a Court order. This prohibition applies while in the courtroom and while appearing remotely.

PROBATE TENTATIVE RULINGS FOR:

DATE: APRIL 24, 2026

TIME: 10:00 A.M.

THE COURT WILL PREPARE THE ORDER

UNLESS OTHERWISE STATED (SEE [RULE OF COURT 3.1312](#))

LINE #	CASE #	CASE TITLE	RULING
LINE 1	23PR195657	Mary L. Diaz Revocable Living Trust	Continued hearing on motion for order to show cause re: contempt. Parties must appear.
LINE 2	25PR199998	Trust of David Chao	Motion hearing is off-calendar pursuant to stipulation of the parties.
LINE 3	25PR200274	The William J. Fong and Carol E. Fong 1993 Living Trust	See Line 3 for tentative ruling.
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Calendar Line 1

Case Name:

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Calendar Line 3

Case Name: *The William J. Fong and Carol E. Fong 1993 Living Trust*
Case No.: 25PR200274

The above-entitled action came on for hearing before the Honorable Charles Adams on April 24, 2026, at 10:00 a.m. in Department 7. The matter having been submitted, the Court finds and orders as follows:

INTRODUCTION

On July 1, 2025, Michael Fong (“Petitioner”) initiated this case by filing a petition for removal of the trustee of the William J. Fong and Carol E. Fong 1993 Living Trust, Petitioner’s brother Kevin Fong (“Respondent”). On August 13, 2025, the court ordered Respondent to provide Petitioner with an accounting.

Currently before the court is Petitioner’s motion to compel initial responses to his requests for production of documents, sets one and two. Respondent has filed an opposition indicating that he served responses to both sets of documents.¹ Petitioner has filed a reply.

BACKGROUND

Petitioner served his requests for production, set one on December 30, 2025 and set a date for production of February 7, 2026. On February 9, 2026, Petitioner served his requests for production, set two and set a date for production of March 19, 2026. Petitioner received no responses to his discovery requests. On March 20, 2026, Petitioner filed the instant motion. On March 25, 2026, Respondent served responses to requests for production, set one and on March 26, 2026, Respondent served responses to requests for production, set two.

DISCUSSION

I. Legal Background

Petitioner seeks initial responses to his requests for production of documents, sets one and two. “Unlike a motion to compel further responses, a motion to compel responses is not subject to a 45-day time limit” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare*

¹ Neither party has provided the court with the text of the responses.

Consultants (2007) 148 Cal.App.4th 390, 404 (*Sinaiko*.) There is no meet and confer requirement or time limit for bringing a motion to compel initial discovery responses, and the moving party need only show that the discovery was properly served and a timely response was not provided. (See Code Civ. Proc., §§ 2030.290 [interrogatories]; Code Civ. Proc., 2031.300 [requests for production of documents]; 2033.280 [requests for admission]; *Sinaiko, supra*, 148 Cal.App.4th at pp. 410-411; *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)² No separate statement is required. (Cal. Rules of Court, rule 3.1345(b).)

Generally, when a party has failed to timely provide initial responses to the discovery requests at issue, he or she has waived any objection to them. (§§ 2030.290, subd. (a) [A party who fails to serve timely responses to interrogatories waives any objections to the requests, including those based on privilege or the work product doctrine.]; 2031.300, subd. (a) [a party who fails to serve timely responses to a request for production or inspection of documents “waives ‘any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).”]; 2033.280, subd. (a) [A party who fails to serve timely responses to a request for admissions waives any objections to the requests, including those based on privilege or the work product doctrine. see also *Scottsdale Ins. Co. v. Super. Ct.* (1997) 59 Cal.App.4th 263, 273 [waiver occurs where the responding party fails to timely raise an objection in its initial response]; *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1125.)

There are procedures to be followed to seek relief from the waiver including serving the code-compliant responses and making a noticed motion for relief. (See §§ 2031.300, subd. (a) [requests for production]; 2030.290, subd. (a) [interrogatories]; 2033.280, subd. (a) [requests for admission].)

II. Merits of the Motion

Here, Petitioner has shown that he served the requests for production of documents and that Respondent failed to timely respond. However, thereafter, Respondent served responses to

² All further undesignated statutory references are to the Code of Civil Procedure.

both sets of requests for production. In reply, Petitioner does not contend that the responses are deficient or that they improperly contain waived objections. Instead, he requests that the court order Respondent to provide some documents that were not included in the production and to produce unredacted versions of certain documents.

In his opposition, Respondent asserts that he redacted some private financial information from the documents he produced. He contends that none of the redacted information is relevant to the instant lawsuit and that he offered to produce unredacted versions of the documents with a protective order.³ Petitioner counters that Respondent has waived his right to object by failing to timely respond to the requests for production. While Respondent seeks relief from waiver, the court does not have the responses he served on Petitioner and therefore cannot confirm whether they are substantially code-compliant. Nonetheless, it does not appear to the court that it is necessary to determine whether Respondent has met the requirements to move for relief from waiver of his objections because Respondent contends that he is willing to produce unredacted versions of the documents at issue with a reasonable protective order. Even if Respondent has waived his objections by failing to timely respond to the requests, the court would be inclined to enter a protective order prohibiting dissemination of the Respondent's financial documents outside of what is necessary for use in the instant case. Accordingly, the court finds the motion MOOT as responses have been provided. The request for unredacted documents goes beyond the relief contemplated by section 2031.300. However, the court orders the parties to meet and confer to agree on the terms of a protective order for dissemination of unredacted versions of the documents identified by Petitioner. If the parties cannot agree on the terms of a protective order, the parties may submit the dispute to the court.

³ The law is well established that the right to privacy extends to a person's financial affairs. (*Moskowitz v. Superior Court* (1982) 137 Cal.App.3d 313, 315 ["Personal financial information comes within the zone of privacy protected by article I, section 1 of the California Constitution."]; *Fortunato v. Superior Court* (2003) 114 Cal.App.4th 475, 481 [stating, "there is a right to privacy in confidential customer information whatever form it takes, whether that form be tax returns, checks, statements, or other account information"]; see also *Valley Bank of Nevada v. Sup. Ct.* (1975) 15 Cal.3d 652, 658.)

As to the documents Petitioner contends are missing from the document production, Respondent did not indicate that he withheld documents on any basis. Again, the court does not have copies of the responses provided by Respondent and therefore, cannot tell if he asserted objections that he may be relying on in an attempt to avoid production of the missing documents. Accordingly, the court orders Respondent to produce the documents Petitioner contends are missing from the production. These documents may be produced under the parties agreed-upon protective order if applicable.

Both parties suggest that sanctions against the other party are warranted but neither party requests any specific amount of sanctions. Sanctions against Respondent are inappropriate because Petitioner does not identify a statutory basis for sanctions and did not state the request for sanctions in the notice of motion. (§ 2023.040 [“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.”].) Additionally, Respondent contends that sanctions are warranted because Petitioner failed to meet and confer before filing the instant motion. But, as discussed above meet and confer is not required prior to the filing of a motion to compel initial responses. (Compare § 2031.300 [motion to compel initial responses] with § 2031.310 [motion to compel further responses containing meet and confer requirement].) Thus, while the court encourages the parties to meet and confer even where it is not statutorily required, the court does not find failure to meet and confer to be a basis to award sanctions against Petitioner. Both parties’ requests for sanctions are DENIED.

CONCLUSION

The motion is DENIED AS MOOT. The parties are ordered to meet and confer regarding the terms of a protective order, which will allow for production of unredacted versions of the documents identified by Petitioner. If the parties cannot agree on the terms of the protective order, Respondent may submit the dispute to the court through a noticed motion for protective

order. The court further orders that Respondent produce the documents Petitioner contends are missing from the document production within 10 days of the date this order is filed.

Both parties' requests for sanctions are DENIED.

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